



Procedure No: EXP202303660 (PS/0311/2023)

RESOLUTION OF THE SANCTIONING PROCEDURE

From the actions carried out by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On 08/02/23, Ms. A.A.A. (hereinafter, the claimant) filed a complaint with the Spanish Agency for Data Protection. The complaint was directed against the entity LINKEDIN IRELAND LIMITED, with Foreign Identification Document: ***NIE (hereinafter, the respondent), for the alleged violation of data protection regulations: Regulation (EU) 2016/679 of the European Parliament and of the Council, dated 27/04/16, regarding the Protection of Natural Persons with regard to the Processing of Personal Data and the Free Movement of such Data (GDPR), Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (LOPDGDD), and Law 34/2002, of July 11, on Information Society Services and Electronic Commerce (LSSI).

In the complaint, it is indicated that the claimant receives communications from LinkedIn in her email, despite having requested several times to unsubscribe from the newsletter, and she attaches copies of the two unsubscribe requests, the first of which, as she indicates, is from November 2022 and the second is dated 01/02/23.

The response from the respondent to this last unsubscribe request was as follows:

You have unsubscribed

You will no longer receive emails from LinkedIn with a summary of your notifications

Manage other email preferences.

Did you unsubscribe by mistake?

<>.

However, she indicates that after receiving this acknowledgment of the newsletter unsubscribe, she continued to receive commercial notifications and attaches copies of the newsletters received in her email on the days 2, 3, 6, 7, and 8 of February 2023.

Finally, she states that after mediation by AUTOCONTROL, the respondent did not respond to her request, and therefore AUTOCONTROL notified her that the file was archived.

SECOND: On 21/03/23, in accordance with the provisions of Article 65.4 LOPDGDD, this Agency forwarded the complaint to the respondent for analysis and to inform, within a month, about what was stated in the complaint.

The forwarding was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), and as certified by the Electronic Notifications and Electronic Address Service, the request sent to the respondent on 21/03/23, to

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through the electronic notification service "NOTIFIC@", was automatically rejected on 01/04/23.

Although the notification was validly carried out by electronic means, and the procedure was considered completed in accordance with the provisions of Article 41.5 of the LPACAP, an informational copy was sent by postal mail to LINKEDIN SPAIN, S.L. (LINKEDIN IRELAND LIMITED), with the following associated information: Delivery management by Unit: XXXXXXXX on 18/04/23, with the recipient of the document being Ms. B.B.B. ***NIF.1.

There is no record in this Agency of any written response from the defendant party to the request made by this Agency.

THIRD: On 08/05/23, the Director of the Spanish Data Protection Agency issued an admission agreement for the processing of the complaint filed, in accordance with Article 65 LPDGDD, upon noting possible rational indications of a violation of the regulations within the scope of the

competencies of the Spanish Data Protection Agency.

FOURTH: On 23/06/23, the Director of the Spanish Data Protection Agency initiated sanctioning proceedings against LINKEDIN IRELAND LIMITED, upon noting reasonable indications of a violation of what is established in Article 21.1 of the LSSI, regarding the sending of advertising emails after the complainant opposed it, with an initial sanction of 10,000 euros (ten thousand euros).

The transfer was carried out in accordance with the rules established in the LPACAP and as certified by the Electronic Notification Service and Electronic Address, the initiation document, which was made available to the defendant party on 26/06/23, through the electronic notification service "NOTIFIC@", was automatically rejected on 07/07/23.

Although the notification was validly carried out by electronic means, and the procedure was considered completed in accordance with the provisions of Article 41.5 of the LPACAP, an informational copy was sent by postal mail to the entity LINKEDIN SPAIN, S.L. (LINKEDIN IRELAND LIMITED), with the following associated information: Delivery management by Unit XXXXXXXX on 05/09/23, with the recipient of the document being Ms. C.C.C. (**NIF.1).

FIFTH: The aforementioned initiation agreement was notified in accordance with the rules established in the LPACAP and after the period granted for the formulation of allegations had elapsed, it has been confirmed that no allegations have been received from the defendant party.

Article 64.2.f) of the LPACAP - a provision of which the defendant party was informed in the initiation agreement - establishes that if no allegations are made within the stipulated period regarding the content of the initiation agreement, when it contains a precise statement regarding the responsibility attributed, it may be considered a proposal for resolution. In this case, the initiation agreement of the sanctioning file determined the facts on which the accusation was based, the infringement of the GDPR attributed to the defendant, and the sanction that could be imposed. Therefore, considering that the defendant party has not made allegations against the initiation agreement of the file and in accordance with the provisions of Article 64.2.f) of the LPACAP, the aforementioned initiation agreement is considered in this case a proposal for resolution.

In view of all that has been acted upon, the Spanish Data Protection Agency considers the following proven facts in this procedure,

PROVEN FACTS

First: A complaint is filed indicating that the complainant receives commercial communications from LinkedIn in their email, despite having requested the cancellation of the newsletter subscription several times and attaching two cancellation requests, the first dated November 2022 and the second dated 01/02/23.

Second: The response from the defendant party dated 01/02/23 is attached, in which the following is stated: "You have unsubscribed. You will no longer receive emails from LinkedIn with a summary of your notifications. Manage other email preferences. Did you unsubscribe by mistake? <>."

Third: A copy of the advertising newsletters received by email on 2, 3, 6, 7, and 8 February 2023 is attached.

LEGAL GROUNDS

I-

Competence

The Director of the Spanish Data Protection Agency is competent to resolve this Sanctioning Procedure, in accordance with the provisions of Article 43.1, second paragraph, of Law 34/2002, of 11 July, on Information Society Services and Electronic Commerce (LSSI).

The Fourth Additional Provision of the LOPDGDGDD establishes, regarding the "Procedure in relation to the competencies attributed to the Spanish Data Protection Agency by other laws," that: "The provisions in Title VIII and its implementing rules shall apply to the procedures that the Spanish Data Protection Agency must process in the exercise of the competencies attributed to it by other laws."

II.-

Summary of the Facts.

In this case, the complainant files a complaint indicating that they receive communications from LinkedIn in their email, despite having requested the cancellation of the newsletter subscription on

several occasions. The complaint document includes two cancellation requests, the first of which, according to the complainant, is from November 2022 and the second is dated 01/02/23. The response from the defendant party to this second cancellation request was: "You have unsubscribed. You will no longer receive emails from LinkedIn with a summary of your notifications."

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However, after receiving the acknowledgment of the cancellation, the claimant continued to receive commercial notifications in their email, attaching copies of the newsletters received on February 2, 3, 6, 7, and 8, 2023.

III.-

Classification of the infringement committed

Article 21.1 of the LSSI states the following:

"1. The sending of advertising or promotional communications by email or other equivalent electronic communication means that have not been previously requested or expressly authorized by the recipients is prohibited."

Therefore, the facts presented in the previous section constitute a violation of Article 21.1 of the LSSI, as advertising emails were sent to the claimant after they opposed receiving electronic communications of this type.

IV.-

Graduation of the sanction

The aforementioned infringement is classified as "minor" in Article 38.4.d) of the said regulation, which qualifies as such, "The sending of commercial communications by email or other equivalent electronic communication means when the requirements established in Article 21 are not met and does not constitute a serious infringement."

According to the provisions of Article 39.1.c) of the LSSI, minor infringements may be sanctioned with a fine of up to €30,000.

Based on the evidence obtained, it is considered appropriate to graduate the sanction to be imposed according to the following aggravating criteria established in Article 40 of the LSSI:

- The existence of intent (section a), since the claimant had requested on two occasions that no further communications be sent to them via email, and the entity being claimed had acknowledged receipt of their request confirming that it had been attended to. Furthermore, the request made by AUTOCONTROL to the claimant's request received no response from the entity being claimed.

In accordance with these criteria, it is deemed appropriate to impose a sanction of €10,000 (ten thousand euros) for the infringement of Article 21.1 of the LSSI, regarding the sending of advertising emails after the claimant opposed receiving electronic communications of this type, both directly and through AUTOCONTROL.

Therefore, in accordance with the applicable legislation and considering the criteria for the graduation of sanctions whose existence has been established, the Director of the Spanish Agency for Data Protection,

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RESOLVES:

FIRST: TO IMPOSE on the entity LINKEDIN IRELAND LIMITED, with Foreign Identification Document: ***NIE, for the infringement of Article 21.1 of the LSSI, a sanction of €10,000 (ten thousand euros).

SECOND: TO NOTIFY this resolution to the entity LINKEDIN IRELAND LIMITED.

THIRD: To warn the sanctioned party that the imposed sanction must be paid once this resolution

becomes enforceable, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, within the voluntary payment period indicated in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by depositing it in the restricted account No. ES00 0000 0000 0000 0000 0000, opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., or otherwise, collection will proceed in the executive period.

Upon receiving the notification and once enforceable, if the date of enforceability falls between the 1st and 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next working day, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next working day. In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative route (Article 48.6 of the LOPDGDD), and in accordance with the provisions of Articles 112 and 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may optionally file a motion for reconsideration with the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned legal text.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the final resolution in the administrative route may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by writing addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>],

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or through any of the other registers provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1.

It must also send to the Agency the documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it would consider the precautionary suspension to be concluded.

Mar España Martí

Director of the Spanish Agency for Data Protection.

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